

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE

FOR

SENATE BILL 1794

By: Stanley of the Senate

and

Roe of the House

COMMITTEE SUBSTITUTE

[mental health - registry - module - participation
and reporting - requests - covered facilities -
corrective action - placements - audits and
administrative remedies - data - compliance -
proposals - requirements - rules - codification -
effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1-111.1 of Title 43A, unless
there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Oklahoma
Behavioral Health Vacancy Registry Act".

SECTION 2. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1-111.2 of Title 43A, unless
there is created a duplication in numbering, reads as follows:

As used in this act:

1 1. "Available bed" or "available treatment capacity" means a
2 staffed and operational treatment slot, within the covered
3 facility's staffed capacity, that may be assigned to a consumer
4 consistent with the covered facility's licensed level of care and
5 written admission and exclusionary criteria;

6 2. "Covered facility" means a facility, other than a hospital
7 or hospital-based psychiatric unit, that is licensed or certified in
8 this state and authorized to accept consumers for:

9 a. emergency detention, protective custody, or assessment
10 as provided by Sections 1-110 and 5-207 of Title 43A
11 of the Oklahoma Statutes, or

12 b. court-ordered competency evaluations and competency
13 restoration services as described in subsection C of
14 Section 3 of this act;

15 3. "Licensed capacity" means the maximum number of beds or
16 treatment slots a covered facility is licensed or certified to
17 operate;

18 4. "Referral source" means a facility, provider, court, law
19 enforcement agency, crisis services provider, or other entity
20 authorized by the Department of Mental Health and Substance Abuse
21 Services to request placement through the registry created under
22 this act; and
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1 5. "Staffed capacity" means the number of beds or treatment
2 slots that are operational and supported by sufficient staffing to
3 safely admit and treat consumers.

4 SECTION 3. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 1-111.3 of Title 43A, unless
6 there is created a duplication in numbering, reads as follows:

7 A. The Department of Mental Health and Substance Abuse Services
8 shall establish and maintain a secure, electronic, statewide
9 behavioral health vacancy registry to expedite placements associated
10 with:

11 1. Emergency detention, protective custody, or assessment as
12 provided by Sections 1-110 and 5-207 of Title 43A of the Oklahoma
13 Statutes; or

14 2. Court-ordered competency evaluations or competency
15 restoration services as described in subsection C of this section.

16 B. The registry shall provide near real-time information
17 regarding available beds and available treatment capacity at covered
18 facilities in this state.

19 C. The registry shall include a dedicated forensic competency
20 module to support court-ordered competency evaluations and
21 competency restoration services conducted pursuant to Sections
22 1175.1 through 1175.6a of Title 22 of the Oklahoma Statutes,
23 including referrals arising from findings of incompetency to stand
24 trial and orders for treatment to restore competency, in compliance

1 with all applicable state laws and any applicable state or federal
2 consent decree.

3 SECTION 4. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1-111.4 of Title 43A, unless
5 there is created a duplication in numbering, reads as follows:

6 A. Each covered facility shall participate in the behavioral
7 health vacancy registry and report, in the manner prescribed by
8 rules promulgated by the Board of Mental Health and Substance Abuse
9 Services:

- 10 1. Licensed capacity and staffed capacity;
- 11 2. Current available beds or available treatment capacity;
- 12 3. Population served, age range, and level of care;
- 13 4. Whether the facility accepts placements associated with
14 emergency detention, protective custody, or assessment as provided
15 by Sections 1-110 and 5-207 of Title 43A of the Oklahoma Statutes or
16 court-ordered competency evaluations and competency restoration
17 services as described in subsection C of Section 3 of this act;
- 18 5. Admission limitations based on clinical capability or safety
19 requirements; and
- 20 6. Contact information for placement coordination available on
21 a twenty-four-hour basis.

22 B. 1. Covered facilities shall update registry information
23 upon a material change in availability and at intervals established
24 by the Board through rule.

1 2. A covered facility shall ensure reported availability
2 accurately reflects available beds or available treatment capacity
3 that is staffed and capable of accepting a placement at the time
4 reported.

5 C. 1. An authorized referral source may access the registry
6 for placement purposes. The registry shall allow an authorized
7 referral source to submit a placement request or reservation for an
8 available bed at a covered facility.

9 2. A covered facility shall respond to a registry placement
10 request within the time period established by the Board through rule
11 and shall document acceptance or denial in accordance with rules
12 promulgated by the Board. A registry reservation confirmed by a
13 covered facility shall be honored for the time period established by
14 the Board through rule unless:

- 15 a. material clinical information changes,
- 16 b. the consumer no longer meets the facility's written
17 admission criteria, or
- 18 c. the consumer meets the facility's written exclusionary
19 criteria.

20 D. A covered facility:

21 1. Shall apply its written admission criteria and written
22 exclusionary criteria in a consistent and nondiscriminatory manner;
23 and
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1 2. Shall not, except for documented clinical or safety reasons,
2 refuse admission of an otherwise appropriate consumer when the
3 registry shows available treatment capacity and the consumer meets
4 the facility's written admission criteria and does not meet the
5 facility's written exclusionary criteria for placement under
6 Sections 1-110 and 5-207 of Title 43A of the Oklahoma Statutes or
7 Sections 1175.1 through 1175.6a of Title 22 of the Oklahoma
8 Statutes.

9 E. A pattern or practice of refusals by a covered facility
10 inconsistent with reported available treatment capacity or written
11 admission or exclusionary criteria, including selective acceptance
12 designed to avoid higher-acuity or forensic consumers, may
13 constitute noncompliance subject to review and corrective action by
14 the Department of Mental Health and Substance Abuse Services under
15 Section 6 of this act.

16 SECTION 5. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 1-111.5 of Title 43A, unless
18 there is created a duplication in numbering, reads as follows:

19 A. Participation in the behavioral health vacancy registry by
20 hospitals and hospital-based psychiatric units shall be voluntary
21 and on an opt-in basis, except as otherwise required by contract or
22 federal law. A participating hospital or hospital-based psychiatric
23 unit may elect to do one or both of the following:
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1 1. Report staffed capacity and available bed information to the
2 registry; or

3 2. Accept placement requests through the registry under
4 standards established by rule or contract.

5 B. A hospital or hospital-based psychiatric unit that elects to
6 participate in the registry shall make good-faith efforts to keep
7 registry information reasonably current; however, delays
8 attributable to direct patient care responsibilities or completion
9 of intake or admission processes shall not constitute a violation of
10 this subsection.

11 C. A hospital or hospital-based psychiatric unit participating
12 in the registry shall not, solely by virtue of such participation,
13 be deemed a covered facility for the purposes of this act.

14 D. With respect to a hospital or hospital-based psychiatric
15 unit, receipt of a placement request through the registry does not
16 constitute acceptance of a patient, does not create a duty to accept
17 transfer of a patient, and does not create a transfer agreement.
18 Any evaluation, stabilization, admission, or transfer decision shall
19 remain subject to the Emergency Medical Treatment and Labor Act
20 (EMTALA) and applicable state law.

21 E. Nothing in this act shall be construed to expand, limit,
22 replace, or conflict with a hospital's obligations under EMTALA.
23 Hospitals participating in the registry shall remain subject to
24 EMTALA regardless of registry participation.

1 SECTION 6. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1-111.6 of Title 43A, unless
3 there is created a duplication in numbering, reads as follows:

4 A. The Department of Mental Health and Substance Abuse Services
5 may audit behavioral health vacancy registry submissions and
6 responses by covered facilities for accuracy, timeliness, and
7 consistency with written admission criteria and written exclusionary
8 criteria.

9 B. If the Department determines that a covered facility has
10 failed to report accurately, respond timely, or comply with this act
11 or rules promulgated under this act, the Department may require a
12 corrective action plan and may impose administrative remedies as
13 provided by law.

14 SECTION 7. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 1-111.7 of Title 43A, unless
16 there is created a duplication in numbering, reads as follows:

17 A. The behavioral health vacancy registry shall not include
18 personally identifiable consumer health information.

19 B. All registry data collection and use shall comply with
20 applicable state and federal privacy laws, including the Health
21 Insurance Portability and Accountability Act of 1996 (HIPAA) and 42
22 C.F.R., Part 2 as applicable.

23 C. Registry data, including facility-submitted denial reasons
24 and response information:

1 1. Shall be confidential and shall be used only for placement
2 coordination, system oversight, and aggregate reporting as
3 authorized by subsection E of this section; and

4 2. Shall not be subject to the Oklahoma Open Records Act,
5 except for aggregate, de-identified reports as described in
6 subsection E of this section.

7 D. Nothing in this act shall be construed to require the
8 registry to collect, store, or display individual consumer
9 diagnosis, payor information, or preauthorization status, and the
10 registry shall not be used as a clinical record. Any consumer-
11 specific clinical information exchanged for purposes of placement
12 shall be transmitted outside the registry in a manner consistent
13 with applicable privacy laws.

14 E. The Department of Mental Health and Substance Abuse Services
15 may publish aggregate, de-identified reports regarding system
16 capacity, utilization, and placement timeliness.

17 SECTION 8. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 1-111.8 of Title 43A, unless
19 there is created a duplication in numbering, reads as follows:

20 Within six (6) months of the effective date of this act, the
21 Department of Mental Health and Substance Abuse Services shall issue
22 a request for proposals for the development and implementation of
23 the behavioral health vacancy registry for the purpose of procuring
24 any technology, platform, software, or vendor services necessary to

1 implement, host, operate, or maintain the registry. Such request
2 for proposals and the procurement process shall be conducted in
3 accordance with the Oklahoma Central Purchasing Act, Section 34.12
4 of Title 62 of the Oklahoma Statutes, and any other applicable state
5 procurement laws. The Department shall:

6 1. Prioritize vendors on a best-value basis including, but not
7 limited to, total cost of ownership, implementation timeline,
8 scalability, data security, interoperability, ongoing support, and
9 long-term sustainability;

10 2. Give preference to proposals that provide the required
11 technology and services at the lowest overall cost, including
12 proposals offered at no cost to the state or participating
13 providers, provided that such proposals meet all functional,
14 security, and compliance requirements of this act. The Department
15 shall not require, as a condition of award, functionality beyond the
16 requirements of this act;

17 3. Allow proposals funded in whole or in part through gifts,
18 grants, donations, or in-kind contributions of hardware, software,
19 licensing, hosting, or services. The Department may accept such
20 gifts, grants, or donations, subject to applicable law, provided
21 that acceptance does not compromise data ownership, security,
22 independence, or operational control of the registry; and

23 4. Not expend state-appropriated funds for software
24 development, acquisition, licensing, or subscription to implement

1 the registry unless, after completion of the competitive procurement
2 process required by this section, the Department determines that no
3 proposal meeting the requirements of this act is available at no
4 cost to the state.

5 SECTION 9. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 1-111.9 of Title 43A, unless
7 there is created a duplication in numbering, reads as follows:

8 The Board shall promulgate rules necessary to implement the
9 provisions of this act including, but not limited to, reporting
10 standards, update intervals, placement priority standards, queue
11 management practices, access controls, documentation of denials,
12 reservation time frames, forensic module standards, compliance
13 procedures, and technical and operational standards for hospitals
14 and hospital-based psychiatric units that elect to participate.

15 SECTION 10. This act shall become effective November 1, 2026.

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